

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2015-5059, 2015-5061, 2017-5363, and 2017-6468.

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
CERTIFICATION TO PRACTICE ADDICTION COUNSELING AND THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF DANNY THRUTCHLEY, CERTIFICATION NO. ACC 6049 AND
LICENSE NO. LPC 3008,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction
Counselor Examiners and State Board of Licensed Professional Counselor
Examiners ("the Boards") and Danny Thrutchley ("Respondent") as follows:

1. Respondent is a licensed professional counselor ("LPC") within the
State of Colorado, license number LPC 3008.
2. Respondent obtained his license to practice as an LPC on January 4,
2002, and has been so licensed at all times relevant herein.
3. Respondent is a certified addiction counselor III ("CAC III") within the
State of Colorado, certification number ACC 6049.
4. Respondent obtained his certification to practice as an addiction
counselor on September 11, 2003, and has been so certified at all times relevant
herein.
5. The Boards have jurisdiction over Respondent and the subject matter
herein pursuant to the provisions of the Mental Health Practice Act, § 12-43-101 *et
seq.*, C.R.S. ("MHPA").
6. It is the intent of the parties and the purpose of this Order to provide
for a settlement of all matters arising out of case numbers 2015-5059, 2015-5061,
2017-5363, and 2017-6468, without the necessity of holding a formal hearing.

7. This Order is a full and final resolution of case numbers 2015-5059, 2015-5061, 2017-5363, and 2017-6468. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.

8. Respondent admits the following:

- a. Respondent was a private contractor for Boulder Alcohol Education Center ("BAEC") from September 10, 2015, through October 2, 2015;
- b. During his time with BAEC, Respondent completed a Domestic Violence Risk and Needs Assessment ("DVRNA") for domestic violence offender, S.S.
- c. Respondent was sent a copy of the police report and S.S.'s criminal history prior to completing the DVRNA;
- d. Respondent failed to identify several risks in the DVRNA for S.S. that resulted in the placement of S.S. in the wrong level of treatment; and,
- e. Respondent's mandatory disclosure statement ("MDS") for S.S. was non-compliant.

9. By virtue of the facts admitted in paragraph 8 above, Respondent admits, and the Boards find, that Respondent violated §§ 12-43-214(1) and 12-43-222(1)(g)(I) and (p), C.R.S., and Domestic Violence Offender Management Board ("DVOMB") Standards 4.09, 5.01, 5.02(VII), 5.03(I), 5.04(III)(A), (E), and (F), 5.06(II) and (VI)(A), and 11.06.

ADMONITION

10. On the basis of the findings set forth in paragraphs 8 and 9 above, the Boards hereby admonish Respondent for violations of §§ 12-43-214(1) and 12-43-222(1)(g)(I) and (p), C.R.S., and DVOMB Standards 4.09, 5.01, 5.02(VII), 5.03(I), 5.04(III)(A), (E), and (F), 5.06(II) and (VI)(A), and 11.06. This Order is effective as a Letter of Admonition pursuant to § 12-43-223(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

11. Within 12 months of the effective date of this Order, Respondent must successfully complete 20 hours of Board-approved professional continuing education

("CE") courses in the areas of domestic violence risk assessment, record keeping, ethics, and professional practice. Respondent shall obtain the Boards' approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards.

12. These CE hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado certification or license or to meet any other certification or licensure requirements.

TERMS AND CONDITIONS

13. Respondent shall strictly observe the prohibitions set forth in § 12-43-222(1), C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with generally accepted standards of practice.

14. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

15. In the event Respondent relocates at any time prior to completing the terms of this Order, he shall notify the Boards of the change of address within 30 days of the effective date of such change.

16. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

17. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

18. This Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to § 12-43-224, C.R.S.

19. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the MHPA and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect

the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

20. Respondent shall obey all municipal, state, and federal laws while this Order is in effect.

21. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representative.

22. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

23. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

24. This Order shall be admissible as evidence at any hearing held before the Boards.

25. This Order shall be a public record in the custody of the Boards.

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AGREED TO AND ACCEPTED BY:

RESPONDENT



Danny Thrutchley, Certification No.
ACC 6049 and License No. LPC 3008

AGREED TO AND ORDERED BY:

**STATE BOARD OF ADDICTION
COUNSELOR EXAMINERS AND
STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS**



Ariana Busby
Program Director

Effective this Date:

July 18, 2019 ^{no}
September 24, 2019 ^{no}